

Federal Maritime Commission Washington DC

Office of Administrative Law Judges

Mohammad Rana,	}	
Complainant	}	Docket No. 19-03
	}	
V.	}	
	}	
Michelle Franklin	}	Date : March 17, 2020
The Right Move, Inc	}	
Respondent	}	

BEFORE : Honorable Erin M. Wirth , Administrative Law Judge .

Respondent's Brief

The respondent Hereby file her final brief along with objection to the alleged findings the complainant presents.

First and foremost, I Believe all parties agree that there are 2 parts to the claim.

1. The ocean freight. (Referred to as part 1)
2. All additional costs incurred by the complainant other than the ocean freight. (referred to as pat 2)

In his brief, the complainant tries to establish the respondent bad character and to establish that respondent engaged in a shipping transaction with him with no intentions of paying it forward.

This would have been beneficial had the respondent argued that she refuse to pay the ocean costs for any reason. Or in an event where there was no container to begin with.

But the facts are

- A. respondent provided a container for shipping, resulting in trucking costs and ocean costs.
- B. Respondent confirm that after all her efforts she failed to pay the ocean.

Part 1

The Complainant has lack of knowledge in the shipping process, the responsibility, the liability and the outcome of all actions taken by the respondent.

The respondent is professional, with over 15 years of shipping experience, the respondent had to prove to the FMC her professionalism prior to granting her the NVOCC license.

As such, the respondent is very aware of the outcome of nonpayment of the ocean shipment.

With such awareness in place, the respondent never had any intentions of not paying the ocean as she is well aware of her personal liability, she understands she would have paid it one way or another, and therefore such outcome of failure to pay the ocean has never even crossed her mind.

The respondent maintained proper licensing requirements, Tariff and bond through the entire time of operation. Stating that anything was done with any hidden intentions is a contradiction to the core of having an NVOCC license and its gravity, as the license is tied to a personal liability.

The complainant explains pages after pages of why the respondent was unfair, knowingly deceiving, and hiding the truth from him about her company's financial struggles, all in an attempt to get away with a profit of \$1,024.

The Complainant may not be aware that Shipping household goods is seasonal, it means you struggle in the winter to keep afloat and come summer you are able to generate more revenue.

Also, he may not be aware that this is not a business that is based on repeat customers, but you must work hard every month to get new customers.

This is for 100% of all shipping companies in the world, and year after year after year, I have been through this same cycle. Asking the respondent to foresee difficulties is unreasonable as it worked for 8 years prior and the business was successful.

At time of accepting the shipment, the respondent had no way of knowing she is facing harder times than usual.

Furthermore, Since the complainant prepaid his shipment, prior to loading, and according to his accusations, The respondent should have disappeared after collecting the money and kept the full \$2,595. For herself. Instead, the respondent provided the Complainant with a container and shipped it as agreed in an absolute belief she can pay it when the time comes.

The respondent was responsive throughout the whole process, From the first interaction with the complainant, and throughout the whole process. Should the respondent have any bad intentions why would she be so responsive? why not ignore E-mails and disappear? It is the respondent who chased the complainant for proper inventory list. it is the respondent who chased the complainant for proper consignee information for weeks. It's the respondent who suggested to use an agent at destination. Time after time after time. This is not a behavior of someone who is planning to con you.

In his Appendix the complainant present a lot of E-mails exchanged between the parties (**Complainant Exhibit 15-36**) and a lot more which he didn't share) tens of E-mails a day , were the respondent is being direct, upfront, trying to make sense to the lack of payment , frustrated and emotional about It. Yes, Its passion, no filters, the respondent shared whatever she could, maybe a bit to much to make her vulnerable. The amount of E-mails exchanged should be a proof of care and sense of responsibility, it is much easier to ignore. In fact, it proves the opposite of bad intentions.

And since the outcome is the same, unfortunately, there was no sense of dragging anyone else into it. The respondent took full responsibility.

In his Brief, the complainant assumes the respondent was involved in civil litigation, **the complainant Is wrong, and being absolutely irresponsible, as he finds his sources online.** the respondent never took part of this litigation, nor he knows anything about this case whatsoever!

Ms. Madhu Sameer opened the case in July 6, 2017, and the case was terminated on May 22, 2018 prior to The Right Move inc or the respondent being involved in anyway.

The respondent or the Right Move inc, was never involved in any other lawsuits before either.

The complainant accuses the respondent of making False statement about her intentions to close the company and surrender her FMC license.

Please see **respondent Exhibit 1** . This E-mail confirms the respondent intentions and for not accepting new business since March 2019, after the decision to close was made.

Also, the complainant Is not aware of what it means to not maintain a bond, It means I didn't pay the premium, it was by choice, as part of shutting down. The bond was up for renewal on June 8, and since the company was shutting down, there was no reason to spend money I didn't have .

Respondent Exhibit 2, is a proof that I addressed it with the FMC at the time, and was advised by Mr. Cliff Johnson that : "If you apply for a license in the future, the FMC will not differentiate between voluntary surrender or failure to maintain a bond – neither is disqualifying or considered negatively in new licensing applications. "

As such, I didn't care whatsoever why the license was canceled, as it makes no difference!

But Once Again, the complainant lack of understanding or facts makes him jump to conclusions.

The complainant state he was not aware of the respondent bond.

Please see Complainant Exhibit 23, Page 1 of 2 .to support Respondent had advised complainant of his options.

The respondent was cooperative and attempted to get the payment issue resolved with her limited means.

Also, See **Respondent Exhibit 3**, on April 8, offering the complaint to communicate through the FMC. Another false accusation by the complainant.

Part 2:

Throughout the whole process, It was the complainant lack of knowledge that created unnecessary issues time after time.

Upon signing the agreement, the Complainant received specific instructions of how to load and secure the cargo, was instructed how to write the inventory list, and to provide proper info for the bill of lading.

The complainant didn't provide the proper information until much later in the process causing delay in issuing the proper bill of lading even though the information was requested several times.

On March 25, the complainant asked me what a bill of lading is, not even knowing it is needed to clear custom and release the container, that's about 10 days prior to the container arrival.

I have explained to him what it is and why he needs it, making him aware that this may cause delays. (Respondent Exhibit 4)

Therefore, It is very likely that:

- A. It was the complainant lack of understanding of the process and "learn as you go" experience that created these delays. you can see in his 3 pages of Affidavit of Complainant he states that he only first approached Maersk on April 2nd. When clearly custom clearance and proper procedures should have started long long before container arrival, in fact it should start upon container departure from origin port. The complainant didn't even bother following on the container arrival, not understanding his responsibility with a door to port shipment and was "surprised" that the container already arrived prior to expected date. Should he had the proper knowledge or proper assistance, a lot could have been avoided.
- B. Custom clearance in Pakistan is difficult as is, and should be handled by a professional, The complainant decided to save money and do it himself or hire an agent that clearly

didn't do their job, and resulted in the complainant visiting Maersk office unreasonable amount of times , this created the chain of events he refers to and try to blame on the container release delay .

- C. Container release and custom release are 2 separate things in every country in the world, often the custom clearance preparation is done prior to the container arrival. But if one doesn't know it needs to be done, his starting point is already a "problem: . Custom clearance could have been done while this container was being released, they are not related and therefore the 5 days delay has no impact on the total expenses the complainant had occurred. I have done enough shipments to Pakistan to know that 17-20 days is reasonable time to clear custom in Pakistan and there is nothing unusual about what the Complainant experienced, only difference, it is usually done by an agent who has a better network to make it smoother and faster.

In Conclusion, the complainant used unreliable sources for his assumptions and accusations, used insulting , disturbing words in an excessive amount to describe the respondent and is holding her liable for a lot of charges that had occurred due to his lack of proper preparation and knowledge.

The Respondent proved time after time how much she was involved in this, she showed responsibility , care towards the complainant when he didn't know what needs to be done throughout the process, she provided proper instructions of what needs to be done in order to release the container , how it can be resolved, offered to file a claim against her bond, and even requested the complainant to communicate with her through the FMC when he started becoming abusive and threatening.

If the respondent had anything to hide, why would she offer all the above?

Could it be that is was really financial difficulties with no hidden agenda ?

Michelle (Michal) Franklin

A handwritten signature in cursive script, appearing to read 'Michelle', written in dark ink.